

Chapter 8

Enforcement and Implementation of RA 10175

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Intended Learning Outcomes

At the end of this chapter, the student is expected to:

- ☐ Identify, discuss, and examine the need and role of cybercrime laws
- ☐ Describe and differentiate between substantive, procedural and cybercrime laws
- ☐ Identify and critically assess national, regional, and international cybercrime laws
- ☐ Critically evaluate the protection of human rights online

The Role of Cybercrime Law

- ❑ **Identifies standards** of acceptable behavior for information and communication technology (ICT) users;
- ❑ **Establishes** socio-legal sanctions of cybercrime;
- ❑ **Protects** ICT users, and mitigates and/or prevents harm to people, data, systems, services and infrastructure;
- ❑ **Protects human rights**;
- ❑ **Enables** the investigation and prosecution of crimes committed online; and
- ❑ **Facilitates** cooperation between countries on cybercrime matters

Lead Implementing Agencies

- ❑ **Department of Justice (DOJ)** Acts as the central authority for cybercrime prosecution and coordination.
- ❑ **Philippine National Police (PNP)** and **National Bureau of Investigation (NBI)** Responsible for investigation, digital forensics, and arrest of offenders through specialized cybercrime units.
- ❑ **Department of Information and Communications Technology (DICT)** Supports cybersecurity infrastructure, policy development, and capacity building.

The Role of Cybercrime Law

Cybercrime law provides rules of conduct and standards of behaviour for the use of the Internet, computers, and related digital technologies, and the actions of the public, government, and private organizations; rules of evidence and criminal procedure, and other criminal justice matters in cyberspace; and regulation to reduce risk and/or mitigate the harm done to individuals, organizations, and infrastructure should a cybercrime occur.

Accordingly, cybercrime law includes **substantive, procedural and preventive law**.

Substantive Law

An illegal act needs to be clearly described in and prohibited by law. Pursuant to the moral principle of *nullum crimen sine lege* (Latin for "*no crime without law*") a person cannot be punished for an act that was not prescribed by law at the time the person committed the act (UNODC, 2013, p. 53).

Substantive Law

Substantive law defines the rights and responsibilities of legal subjects, which include persons, organizations, and states.

Sources of Substantive Law

- Statutes
- Ordinances enacted by city, state, and federal legislatures, federal
- State constitutions
- Court decisions

Legal Systems

1. Common Law – These systems create laws by *legal precedent* (i.e., ruling in case binding to the court and lower courts) and established practice.

These laws exist as separate laws and *case law* (i.e., law that develops from court decisions or legal precedent, Islamic Law, IPs)

Legal Systems

2. *Civil Law* – These legal systems have codified, consolidated, and comprehensive legal rules or statutes that delineate basic rights, responsibilities, duties and expectations of behavior.

These legal systems are primarily based on legislation and constitutions. (i.e., Corporate Laws, Taxation, Insurance, Labor Relations, Banking and Currency)

Legal Systems

3. Customary Law – These legal systems include established and accepted patterns of behaviour within a culture that are perceived by those within the culture to be law (*opinion juris*). In international law, customary law governs relationships and practices between states and is considered binding for all states (i.e., Resources and Environmental Laws, Property Laws, IP Customary Laws)

Legal Systems

4. *Religious Law* – These legal systems include rules derived from religion or the use of religious documents as a legal source and authority (i.e. Filipino Muslim Beliefs, Freedom of Religion)

5. *Legal pluralism* – In this type of legal system, two or more of the above-mentioned legal systems (i.e., common, civil, customary or religious law) may exist.

Levels of Criminal Culpability

Purposely. A person *purposely* commits crime when the person is acting to cause harm (i.e., the person has *intent* to cause harm).

A case in point is the UK Computer Misuse Act of 1990, which criminalizes, among other things, unauthorized access to systems and data with the intention of causing changes and/or damage, disruptions of systems and services, and modifications of system data and programmes

Levels of Criminal Culpability

Wilfully. A person *wilfully* commits crime when the person is aware that an action will cause harm but commits the harm or wrongdoing anyway.

Negligently. *Negligence* is the lowest level of culpability. Those engaging in negligent behaviour lack awareness of the negative consequences of an act

Levels of Criminal Culpability

Recklessly. An individual *recklessly* commits crime when the person engages in an act even though the person is aware of the substantial and unjustifiable risk of harm to others but shows disregard for or indifference to the risk of harm

Procedural Law

Procedural law demarcates the processes and procedures to be followed to apply substantive law and the rules to enable the enforcement of substantive law.

Whereas substantive law would describe how two people might enter into a contract, procedural law would explain how someone alleging a breach of contract might seek the courts' help in enforcing the agreement

Preventive Law

Preventive law focuses on regulation and risk mitigation. In the context of cybercrime, preventive legislation seeks to either prevent cybercrime or, at the very least, mitigate the damage resulting from the commission of cybercrime

(i.e. Philippine AIDS Prevention and Control Act of 1998, Cybercrime Prevention Act of 2012)

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Sec 10. Law Enforcement Authorities

The **National Bureau of Investigation (NBI)** and the **Philippine National Police (PNP)** shall be responsible for the efficient and effective law enforcement of the provisions of this Act.

The NBI and the PNP shall organize a **cybercrime unit or center** manned by special investigators to exclusively handle cases involving violations of this Act.

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Sec 11. Duties of Law Enforcement Authorities

To ensure that the technical nature of cybercrime and its prevention is given focus and considering the procedures involved for international cooperation, law enforcement authorities specifically the computer or technology crime divisions or units responsible for the investigation of cybercrimes are required to submit timely and regular reports including pre-operation, post-operation and investigation results and such other documents as may be required to the Department of Justice for review and monitoring.

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Sec 12. Real-Time Collection of Traffic Data

Law enforcement authorities, with due cause, shall be authorized to collect or record by technical or electronic means traffic data in real-time associated with specified communications transmitted by means of a computer system.

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Sec 13. Preservation of Computer Data

The integrity of traffic data and subscriber information relating to communication services provided by a service provider shall be preserved for a minimum period of six (6) months from the date of the transaction. Content data shall be similarly preserved for six (6) months from the date of receipt of the order from law enforcement authorities requiring its preservation.

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Sec 14. Disclosure of Computer Data

Law enforcement authorities, upon securing a court warrant, shall issue an order requiring any person or service provider to disclose or submit subscriber's information, traffic data or relevant data in his/its possession or control within 72 hours from receipt of the order in relation to a valid complaint officially docketed and assigned for investigation and the disclosure is necessary and relevant for the purpose of investigation.

Suggested Reading

RA 10175

<https://legalresearchph.com/2021/12/05/r-a-no-10175-the-cybercrime-prevention-act-the-net-commandments/>

Assessment Task

Access the [UNODC SHERLOC database](#) and identify a country that does not have a cybercrime law.